



File No.: EXP202410841

## RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on July 15, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised the right of access to their medical history against the respondent, and their request, as stated by the complainant, did not receive the legally established response. The complainant provides various documentation related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: Once the procedure established in Article 65.4 of the LOPDGDD was fulfilled, the complaint was admitted for processing, and the respondent entity was granted a hearing period, to present any arguments they deemed appropriate within ten working days. The respondent entity has not demonstrated, during the formalized procedures, that it has responded to the request for the exercise of rights presented by the complainant.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

### Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the complainant with the appropriate response.

The result of this forwarding did not allow for the understanding that the complainant's claims were

satisfied. Consequently, on October 15, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to attend to the requests for the exercise of the rights of the data subject under this Regulation."

### III

#### Rights of Individuals Regarding Personal Data Protection

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The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, being deemed that the request has been attended to (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive on more than one occasion during a period of six months, unless there is legitimate cause for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

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On the other hand, the request will be considered excessive when the affected party chooses a means different from the one offered that entails a disproportionate cost, which must be borne by the affected party.

IV

#### Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them and being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information regarding the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization.

The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others; that is, the right of access shall be granted in such a way that it does not affect third-party data.

The right of access concerning medical records is specifically regulated in Article 18 of Law 41/2002, of November 14, which establishes the basic regulations governing Patient Autonomy and Rights and Obligations in the Field of Information and Clinical Documentation (hereinafter LAP), the literal wording of which states:

“1. The patient has the right of access, with the reservations indicated in section 3 of this article, to the documentation of the medical record and to obtain a copy of the data contained therein. Health centers shall regulate the procedure that guarantees the observance of these rights.

2. The patient's right of access to the medical record may also be exercised by duly accredited representation.

3. The patient's right of access to the documentation of the medical record may not be exercised to the detriment of the right of third parties to the confidentiality of the data contained therein collected in the therapeutic interest of the patient, nor to the detriment of the rights of the professionals involved in its preparation, who may oppose the right of access based on the confidentiality of their subjective notes.

4. Health centers and individual practitioners shall only provide access to the medical records of deceased patients to persons linked to them, for family or factual reasons, unless the deceased expressly prohibited it and this is evidenced. In any case, access by a third party to the medical record motivated by a risk to their health shall be limited to the relevant data. Information affecting the privacy of the deceased or the subjective notes of the professionals, or that harms third parties, shall not be provided.”

In this regard, it is important to highlight Article 15 of the LPA, which outlines the minimum content of the medical record:

“1. The medical record shall include information deemed essential for the truthful and updated knowledge of the patient's health status. Every patient or user has the right to have a record, in writing

or in the most appropriate technical medium, of the information obtained in all their care processes, carried out by the health service both in the field of primary care and specialized care.

2. The main purpose of the medical record shall be to facilitate healthcare, documenting all those data that, under medical criteria, allow for the truthful and updated knowledge of the health status.

The minimum content of the medical record shall be as follows:

a) Documentation related to the clinical-statistical sheet.

b) Admission authorization.

c) Emergency report.

d) Anamnesis and physical examination.

e) Evolution.

f) Medical orders.

g) Consultation sheet.

h) Reports of complementary examinations.

i) Informed consent.

j) Anesthesia report.

k) Operating room or delivery record.

l) Pathological anatomy report.

m) Nursing care evolution and planning.

n) Therapeutic nursing application.

ñ) Constants chart.

o) Clinical discharge report.

Paragraphs b), c), i), j), k), l), ñ) and o) shall only be required in the completion of the medical record when it concerns hospitalization processes or as provided.

3. The completion of the medical record, in aspects related to direct patient care, shall be the responsibility of the professionals involved in it.

4. The medical record shall be maintained with criteria of unity and integration, in each healthcare institution at a minimum, to facilitate the best and most timely knowledge by the professionals of the data of a specific patient in each care process" (the underlining is from the Spanish Agency for Data Protection).

Regarding the preservation of the medical record, Article 17 of the LPA, in its points 1 and 5, provides that:

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"1. Healthcare centers are obliged to preserve clinical documentation in conditions that guarantee its proper maintenance and security, although not necessarily in the original format, for the adequate assistance to the patient for the appropriate duration in each case and, at a minimum, for five years counted from the date of discharge of each care process...

5. Healthcare professionals who carry out their activity individually are responsible for the management and custody of the care documentation they generate."

V

## Conclusion

In the case analyzed here, the claimant exercised their right of access to the medical record.

Once the period established in the aforementioned regulations had elapsed, their request did not receive the legally required response. The entity being claimed has not attended to the request of the claimant nor to the requirements that have been sent to it by this Agency.

The aforementioned regulations do not allow the request to be overlooked as if it had not been made, leaving it without the response that those responsible are obliged to issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements are not met, in which case the recipient of such a request is also obliged to require the correction of the

observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response, in any case, using any means that justifies the receipt of the response.

Since a copy of the necessary communication that must be directed to the claimant informing them of the decision made regarding the exercise of rights request has not been provided, it is appropriate to uphold the claim that initiated this procedure.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. considering that Article 15 of the GDPR has been infringed and to urge BORA ESTÉTICA, S.L., with NIF B86588779, to send to the claimant, within ten working days from the date this resolution becomes final and enforceable, a certification addressing the exercised right of access or a motivated denial indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to BORA ESTÉTICA, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure (Article 18.4 of the LOPD), and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, a voluntary appeal for reconsideration may be filed before the Presidency of the Spanish Agency for Data Protection, within one month from the day following the notification of this resolution, or directly a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

1168-070324

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy of the Presidency and Deputy Presidency

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